

25STCV17113 25STCV17113

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV17113 Hearing Date: September 4, 2026 Dept: NWI

25STCV17113 CRUPI v. MORETON, JR., et al.

September 4, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Renewed Motion for Leave to File the
Corrected/Revised First Amended Complaint

I.

Background

On June 12, 2025, Plaintiff Annunziata

Crupi ("Plaintiff") filed a Complaint against Defendants Edward B. Moreton Jr., Randolph M. Hammock, University of Southern California, Valter Longo, Sebastian Brandhorst, Wendy Snaer, Gregory Wong, Heather Cox, L-Nutra, Marta Alcumbrac, Howard Smith, Peter Walrod, Candice Zee, Mark Schaeffer, and Does 1 through 100 alleging twenty-three causes of action: (1) civil conspiracy; (2) civil conspiracy to persecute, isolate, and defame; (3) constructive eviction; (4) violation of civil rights via affirmative acts; (5) infliction of public humiliation; (6) retaliation; (7) discrimination; (8) defamation; (9) tortious interference with contract; (10) tortious interference with prospective economic advantage; (11) invasion of privacy; (12) civil harassment; (13) abuse of process; (14) fraud in arbitration; (15) economic coercion and duress; (16) declaratory and injunctive relief; (17) loss of consortium and familial association; (18) violation of constitutional right to travel; (19) violation of right to intimate association and family life; (20) violation of right to reproductive

liberty and family formation; (21) unfair business practices; (22) intentional infliction of emotional distress; and (23) negligent infliction of emotional distress.

On April 9, 2026, Plaintiff filed a Motion for Leave to Amend the Complaint. The matter was fully briefed and came for hearing on May 20, 2026; the matter was taken under submission. On June 18, 2026, the Court denied the motion without prejudice.

On July 2, 2026, Plaintiff filed the instant Renewed Motion for Leave to File the Corrected/Revised First Amended Complaint ("FAC"). Any opposition would have been due on August 24, 2026. To date, no opposition has been filed.

II. Discussion

Preliminary Issues

As a preliminary matter, the Court addresses Plaintiff's Notice of Filing of Supplemental Declaration and Supplemental Declaration filed on August 31, 2026, at 12:00 A.M. (See Not. Plf. Suppl. Decl., 8/31/26; Plf. Suppl. Decl., 8/31/26.) The Court disregards this declaration. Pursuant to Code of Civil Procedure Section 1005, subdivision (b), all reply papers must be filed at least five court days before the applicable hearing. (See Code Civ. Proc., § 1005, subd. (b).) Plaintiff filed this declaration without leave of court effectively one court day before the hearing and two courts after her reply brief and/or notice of non-opposition would have been due. Therefore, the Court disregards this declaration.

Motion for Leave to Amend

The court may, in furtherance of justice and on any proper terms, allow a party to amend any pleading by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect. (Code Civ. Proc., section 473, subd. (a)(1); *Branick v. Downey Savings & Loan Association* (2006) 39 Cal.4th 235, 242.) The court may also, in its

discretion and after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc., section 473, subd. (a)(1); Branick, supra, 39 Cal.4th at 242.) As judicial policy favors resolution of all disputed matters between the parties, leave to amend is liberally granted. (See Kolani v. Gluska (1998) 64 Cal.App.4th 402, 412.) The court may deny the plaintiff's leave to amend if there is prejudice to the opposing party, such as delay in trial, loss of critical evidence, or added costs of preparation. (Id.)

The court also has discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (See California Casualty General Ins. Co. v. Superior Court (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by Kransco v. American Empire Surplus Lines Ins. Co. (2000) 23 Cal.4th 390).)

"Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc., § 576.)

A motion to amend a pleading before trial must (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, Rule 3.1324, subd. (a).) A separate supporting declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reason why the request for amendment was not made earlier must accompany the motion. (Id., Rule 3.1324, subd. (b).)

Here, Plaintiff asserts that the proposed Corrected/Revised FAC independently reconstructs the original complaint and April 9th draft from the underlying evidence, thus is not an edited version of the original complaint or

the April 9th draft. (Crupi Decl., ¶¶14-15, Ex. A at p. 11.) As such, Plaintiff argues that compliance with California Rules of Court, Rule 3.1324, subdivision (a) is not reasonably possible. Even though a line-by-line, page-by-page, or paragraph-by-paragraph comparison of the operative complaint and the proposed Corrected/Revised FAC is not reasonably possible, Plaintiff contends that multiple allegations were consolidated; chronology of alleged facts were reconstructed; causes of action were reorganized; and legal theories were reorganized. (Crupi Decl., Ex. A at p. 12.) Furthermore, Plaintiff appears to contend that the intended effect of the proposed Corrected/Revised FAC is to have a better structured and organized pleading. (Crupi Decl., ¶¶5-7, 18.) However, Plaintiff fails to detail which allegations were consolidated. Similarly, Plaintiff does not specify how the causes of action and/or legal theories were reorganized.

Plaintiff

also fails to provide an explanation for why the request for amendment was not made earlier. Instead, Plaintiff argues that California Rules of Court, Rule 3.1324, subdivision (a) does not apply because the proposed Corrected/Revised FAC was filed pursuant to Code of Civil Procedure Section 472. Generally, “[a] party may amend its pleading once without leave of the court at any time before the answer, demurrer, or motion to strike is filed, or after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike.” (Code Civ. Proc., § 472, subd. (a).) As previously discussed by the Court, Plaintiff is subject to a prefiling order for vexatious litigants. (See Min. Order, 6/18/26 at p. 3.) Vexatious litigants must obtain leave of Court before filing an amended complaint. (See *Shilant v. Girardi* (2011) 51 Cal.4th 1164.)

III.

Conclusion

Accordingly, Plaintiff Annunziata Crupi’s Renewed Motion for Leave to File the Corrected/Revised First Amended Complaint is DENIED.

Clerk to give notice.